

IN CONTEXT

FOCUS

Canon law

BEFORE

c. 30 CE Jesus Christ is crucified; his followers are the first Christians.

c. 48 CE A church council in Jerusalem rules that Gentiles need not follow Mosaic law to be Christian.

AFTER

406–476 Germanic peoples conquer the Western Roman Empire, but the Church preserves Roman customs and canon law.

1054 The Great Schism splits the Church into the eastern Greek Orthodox and western Roman Catholic churches.

c. 1140–1150 Gratian's *Decretum* creates a discipline of canon law separate from theology.

Roman Catholic canon law is the world's oldest continually functioning legal system. It has its origins in the first years of Christianity but has over the past two millennia been adapted to reflect political, economic, social, and cultural changes, as well as religious ones. The word “canon” derives from the Greek *kanon*, meaning a straight rod, or rule. Early canons were primarily concerned with theology and developed from debates about what people should believe.

The first followers of Jesus Christ were Jews who followed Mosaic law (Hebrew laws ascribed to Moses in the Old Testament).

They believed that Christ's 12 apostles (“messengers”) had received the Holy Spirit—the third member of the Christian Holy Trinity. Saul of Tarsus, later known as Paul (c. 5–67 CE), also claimed to be an apostle on the basis of a vision of Christ. In c. 48 CE, one of the first theological disputes in the new Christian Church was resolved at a meeting of its leaders, the Council of Jerusalem. Paul, backed by the apostle Peter, argued that Gentiles (non-Jews) who believed in Jesus could be Christians without first becoming Jews or following Mosaic law. The Council circulated a canon to this effect.

Leadership and beliefs

The Christian communities founded by Paul and his companions were led by *episkopoi* (“overseers”), or bishops, assisted by *diakonoi* (“servants”), or deacons. They presided over rituals, such as communion (a holy meal of bread and wine in memory of Christ's death), and baptized converts. In the early years of the Church, Christians were able to select their own local bishops and deacons.

As Christianity spread, the authority of the bishops increased. They appointed presbyters (“elders”), or priests, to perform rituals on their behalf. In the late 1st century, Bishop Clement of Rome claimed to belong to an unbroken line of bishops going back to St. Peter. He argued that bishops of churches founded by apostles, such as his own, had apostolic authority for their canons. In c. 100 CE, Bishop Ignatius of Antioch, another church

founded by apostles, wrote, “We should look upon the bishop even as we would upon the Lord himself.”

Bishops issued canons to govern local church organization and ritual and their followers' behavior, but primarily to dictate what people should believe. Doctrine had never been important in earlier religions, but Christianity was different, offering salvation to the faithful and damnation to those who held incorrect beliefs. Serious offenses such as heresy (opinions contrary to those of the Church leadership) and blasphemy (insulting the sacred) were disciplined by “anathema”—a punishment excommunicating, or expelling, the offender from the Christian community. Less serious offenses were punished with exclusion from communion.

Another way to control belief was through texts. In the 2nd century, the bishops assembled a fixed set of holy books to stand alongside the Mosaic Old Testament. This New Testament included only books and letters thought to have been written by apostles or their companions. When various Gnostic and other

Paul's dramatic conversion on the road to Damascus turned him from a persecutor of Christians into one of the most influential Christian missionaries.

